

CITATION: Muirhead v. Coulas, 2011 ONSC 6281
COURT FILE NO.: 10-47548
DATE: 20111107

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: MELISSA MUIRHEAD, LENARD SCOTT MUIRHEAD, and
CHELSEA MUIRHEAD by her litigation guardian Leonard Scott
Muirhead v. LAURIE ANN COULAS and KEVIN JOSEPH COULAS

BEFORE: Madam Justice J. Mackinnon

COUNSEL: Colleen L. Burn, for the Plaintiffs
Fabrice Gouriou, for the Defendants

DATE HEARD: October 13, 2011

ENDORSEMENT

[1] The Defendants move for summary judgment dismissing the action as statute barred. The action arises from a trip and fall on July 7, 2005, and was commenced on January 28, 2010, well beyond the two year limitation period. The Defendants submit that no issue with respect to discoverability exists because the Plaintiff knew she had tripped and hurt her right knee at their home, she underwent surgery on her knee three days later and was unable to walk for at least the next two months.

[2] The Plaintiffs do not dispute those basic facts but do rely on the discoverability provisions in the Limitations Act. Their position is that the limitation period did not begin to run until June or November 2009 when two medical opinions were received. Ms Melissa Muirhead had sustained another injury to her right knee in February 2006, from a slip and fall on ice. She retained counsel in March 2006 and commenced an action for damages arising from that slip and fall in April 2007. In the context of that litigation, two medical opinions were obtained from two different orthopedic surgeons. Dr. Besemann provided his June 2009 report at the plaintiffs' request. Dr. Gordon provided his November 2009 report at the defendants' request. Both advised that the injuries incurred in July 2005 were partially contributing to her current and ongoing severe disability.

[3] Given the intervening slip and fall, the Plaintiffs say that it was not until receipt of these reports that they learned that the 2005 injuries were ongoing and permanent in nature. In their submission, these are material facts to this action, both as to what caused the loss and as to what was lost. Accordingly, the Plaintiffs say that the Defendants have not met the burden of showing

that there is no genuine issue requiring a trial on the application of the discoverability principle to the case.

[4] Sections 4, 5(1) and 5(2) of the *Limitations Act, 2002* provide:¹

4. Unless this Act provides otherwise, a proceeding shall not be commenced in respect of a claim after the second anniversary of the day on which the claim was discovered.

5. (1) A claim is discovered on the earlier of,
- (a) the day on which the person with the claim first knew,
 - (i) that the injury, loss or damage had occurred,
 - (ii) that the injury, loss or damage was caused by or contributed to by an act or omission,
 - (iii) that the act or omission was that of the person against whom the claim is made, and
 - (iv) that, having regard to the nature of the injury, loss or damage, a proceeding would be an appropriate means to seek to remedy it; and
 - (b) the day on which a reasonable person with the abilities and in the circumstances of the person with the claim first ought to have known of the matters referred to in clause (a).
- (2) A person with a claim shall be presumed to have known of the matters referred to in clause (1) (a) on the day the act or omission on which the claim is based took place, unless the contrary is proved.

[5] Ms. Muirhead had also sustained an earlier injury in November 2004 when the vehicle she was operating ran into a deer. As a result of that accident, she was already off work in July 2005 but had no complaints regarding her right knee before the July 2005 accident.

[6] There is some disagreement between the parties as to the extent of Ms. Muirhead's, recovery from the July 2005 accident by the time of the slip and fall in February 2006. Ms. Muirhead described it as follows in her affidavit:

At the time of the February 2006 Incident, I had regained a functional range of motion in my right knee to approximately 120 degrees. I still had some pain but I could ride my bike, climb stairs, walk with a normal gait and even do light gardening. I only used a cane when my right leg was very tired. I was planning on returning to work as a material production planner at EMS Technologies within 3-6 months. The only reason why I had not returned to work in February 2006 was because my employer wanted me to have completely recovered prior to returning to work. I was expecting to fully recover from those injuries.

¹ S.O. 2002, c. 24, Schedule B

[7] In her examination for discovery, Ms. Muirhead also acknowledged that she still had pain in her knee by the time of the slip and fall in February 2006.

[8] In his November 11, 2009 report Dr. Gordon addresses the status of her right knee immediately prior to February 16, 2006 as follows:

As a result of the knee injury in July of 2005 she now had 2 ongoing severe disabilities, one being her neck and upper back pain and the other being a chronic right knee problem.

Dr. Webb's note of April 13, 2006 states that prior to the slip and fall injury of February 16, 2006 Ms. Muirhead had a range of motion in her knee from 0 to 100 degrees passively, 45 to 100 degrees actively. She therefore could not extend her knee past 45 degrees and the extension that she did have was extremely weak.

Her leg was weak enough that she used a cane quite regularly because the knee would tend to buckle on her. She could bear her weight but the knee would give out very frequently.

In fact in January of 2006 she had had a fall because her knee buckled and gave out and she had a small fracture in her foot. She was seen at the emergency at the Carleton Place Hospital again for that by Dr. Webb.

It is obvious therefore that she had quite significant ongoing problems with her neck and upper back plus right knee prior to the event of February 2006.

[9] Dr. Gordon went on to say that:

The injury to her right knee of July 2005 had also left her with a permanent problem. She had extremely poor muscle power in her right quadriceps and a range of motion actively from 45 degrees of flexion to 100 degrees of flexion only. She had a 45 degree extension lag where she could not actively extend her knee to a fully straight position. Her knee was therefore very weak and still painful and there were records from the physiotherapist prior to the event of February 2006 that indicated even swimming would cause her knee to become extremely painfully swollen.

[10] Dr. Besemann's expert report dated June 15, 2009 stated that:

Mrs. Muirhead had an initial fall in the summer of 2005 in which she sustained a significant quadriceps hematoma and rupture of the quadriceps tendon requiring surgical drainage and repair.

Recovery from this injury was slow and resulted in significant limitations in range of motion. There was also significant weakness of the quadriceps which did not allow for active extension beyond 45° according to the family physician's notes.

Mrs. Muirhead indicates that she was ready to consider return to work however the notes from the family physician in late 2005 indicate that this was not likely possible.

[11] Rule 20.04(2) and (2.1) of the *Rules of Civil Procedure*² provide as follows:

20.04(2) The court shall grant summary judgment if,

- (a) the court is satisfied that there is no genuine issue requiring a trial with respect to a claim or defence; or
- (b) the parties agree to have all or part of the claim determined by a summary judgment and the court is satisfied that it is appropriate to grant summary judgment.

(2.1) In determining under clause (2) (a) whether there is a genuine issue requiring a trial, the court shall consider the evidence submitted by the parties and, if the determination is being made by a judge, the judge may exercise any of the following powers for the purpose, unless it is in the interest of justice for such powers to be exercised only at a trial:

- 1. Weighing the evidence.
- 2. Evaluating the credibility of a deponent.
- 3. Drawing any reasonable inference from the evidence.

[12] In *Cuthbert v. T.D. Canada Trust*,³, Karakatsanis J. (as she then was) stated:

10 The change in the Rules from "no genuine issue for trial" to "no genuine issue requiring a trial," together with the explicit powers of the motions judge to make evidentiary determinations permits a more meaningful review of the paper record and expressly overrules jurisprudence that prevented motions judge from making evidentiary determinations. As a result, consistent as well with the new principle of proportionality in Rule 1.04 (1.1), cases or issues need not proceed to trial unless it is genuinely required.

11 The decision itself or the test for summary judgment -whether there is a genuine issue of material fact that requires a trial for its resolution as first articulated in *Irving Ungerman Ltd. v. Galanis* (1991), 4 O.R. (3d) 545 (C.A.)- has not changed. However, the cases that have since restricted a motions judge in assessing credibility, weighing evidence or drawing factual inferences have been superseded by the powers set out in the new Rule. ...The motions judge must

² R.R.O. Reg. 194.

³ 2010 ONSC 830, [2010] O.J. No. 630, (Sup. Ct.).

take "a hard look" at the evidence to determine whether it raises a genuine issue requiring a trial. (See *Rozin v. Ilitchev* (2003), 66 O.R. (3d) 410 at para. 8 (C.A.)) New Rule 20.04 provides the judge with more tools to do so.

12 The new Rule does not change the burden of a party in a summary judgment motion. Rule 20.01 provides that a party who seeks summary judgment must move with supporting affidavit material or other evidence to support its motion. Pursuant to Rule 20.02(2), a responding party "may not rest solely on the allegations or denial in the party's pleadings but must set out in affidavit material or other evidence, specific facts showing there is a genuine issue requiring a trial." In other words, consistent with existing jurisprudence, each side must "put its best foot forward." The court is entitled to assume that the record contains all the evidence which the parties will present if there is a trial, although in some circumstances the interests of justice may require that a material issue should be determined at trial, upon a full evidentiary record.

13 In this case there are two summary judgment motions. It is only after the moving party has discharged its evidentiary burden of proving that there is no genuine issue which requires a trial for its resolution, that the burden shifts to the responding party to prove that its claim or defence has a real chance of success. *Aguonie v. Galion Solid Waste Material Inc.*, 38 O.R. (3d) 161 (C.A.).

[13] The onus remains on the moving party throughout to establish that there is no genuine issue requiring trial. Once the moving party has made out a *prima facie* case, something akin to an evidentiary onus shifts to the responding party to establish its claim as being one with a "real chance of success:" see *Guarantee Co. of North America v. Gordon Capital Corp.*⁴

[14] The Defendants have met their initial burden. They have led evidence that the Plaintiff knew of her injury; that it was serious enough to require surgery; that she could not walk for some two months thereafter; that she still had pain and restrictions in her movement six months after the fall and had not been able to return to work by then. She knew who the Defendants were and where to locate them. Section 5(2) of the *Limitations Act, 2002* sets out a presumption that a plaintiff has the requisite knowledge as of the day the act took place, "unless the contrary is proved."

[15] The Plaintiffs maintain that they have led other evidence relevant to the application of s. 5(1) (a) (iv) and (b) of the *Limitations Act, 2002*. First, given Ms. Muirhead's views that her injuries were resolving, would not be permanent and that she would soon return to work, a proceeding would not have been an appropriate means to remedy the injury sustained in the July 2005 trip and fall; second, there is evidence to show that s. 5 (1) (b) may apply because, the Plaintiffs did not know, nor ought not to have known, that a proceeding would be appropriate,

⁴ 1999 CarswellOnt 3171 (S.C.C.) at 27.

until receipt of the two medical opinions in 2009. They say that it was only on receipt of those reports that they did or could have known that the July injury had left Ms. Muirhead susceptible to further injury and was contributing to the problems after the February 2006 accident. In support of this position, the Plaintiffs' rely on three lines of cases to the effect that:

1. a plaintiff should not have to commence action before knowing she has a substantial chance to succeed in recovering damages;
2. where a plaintiff initially appears to have recovered from her injuries and her condition subsequently worsens, the discoverability rule may apply; and
3. where a medical opinion is necessary to know whether to institute an action or not, this may extend the running of the limitation period.

[16] *Beuthling v. Hayes*⁵ was a case where the plaintiff sued the defendant lawyer for professional negligence resulting from an alleged wrongful conviction for sexual assault. On appeal, the conviction was set aside and a new trial was ordered, primarily on the ground of ineffective counsel. The Crown subsequently withdrew the charge. The defendant's motion for summary judgment on the basis that the limitation period had expired before the action was commenced was dismissed. The court held that the cause of action was not complete until the plaintiff could establish that the conviction was, in fact, wrongful. Accordingly the limitation period would not have started to run until either the conviction was set aside or the Crown withdrew the charge, and the action was commenced within the permissible time from each of those events. The Court went on to say:

49 In the alternative, I think Mr. Beuthling cannot be said to have discovered his claim until it became clear that, having regard to the nature of the injury, loss or damage, a civil proceeding would be an appropriate means to seek to remedy it, as contemplated by s. 5(1)(a)(iv) of the *Act*. In addition to the dissenting reasons of Juriensz J.A. in *Hare*, *supra*, I have also had regard to the judgment of Feldman J.A. in *Everding*, *supra*, at para. 11, where she stated:

Clearly it is not the policy of the law or the intent of the limitations provisions to require people to commence actions before they know that they have a substantial chance to succeed in recovering a judgment for damages.

50 In the case of an action against a lawyer for incompetence, leading to a wrongful conviction, the plaintiff would not know that he or she has a substantial chance to succeed in recovering a judgment for damages unless and until the wrongful conviction is set aside.

⁵ 2011 CarswellOnt 1169 (Sup. Ct.).

[17] *Voisin v. Hartin*⁶ dealt with injuries arising from a motor vehicle accident. The issue for determination was when the limitation period began to run, having regard to the statutory threshold. The court stated at paragraphs 28, 30, and 37:

28 The context in which this issue is to be decided is that Mr. Voisin's injuries initially appeared mild and seemed to be fully resolved for a substantial period of time. The injury then manifested itself in a particularly insidious form that has totally disabled him from any form of employment and significantly affected his enjoyment of life.

...

30 In my view, William Voisin faced two conditions precedent to commencing an action. The first condition was whether he had suffered a serious impairment and the second was whether damages awarded for that impairment would exceed \$10,000. To view the monetary requirement as other than a condition precedent would run contrary to the notion enshrined in the discoverability principle that plaintiffs ought not to be precluded from taking action unaware that they had a cause of action.

37 The cause of action does not arise unless the injuries meet both statutory preconditions set out in the *Insurance Act*. To hold that the discoverability principle does not apply to the monetary threshold would unfairly preclude actions by plaintiffs unaware that their injuries were worth that much. This ruling accords with the notion that a cause of action arises for the purposes of a limitation period when the material facts on which it is based have been discovered, or ought to have been discovered, by the plaintiff by the exercise of reasonable diligence. It is also in accord with the notion that a cause of action arises when there are facts that give a person a right to judicial redress or relief against another. Mr. Voisin would not have gotten judicial redress or relief until his non-pecuniary losses were valued in an amount that exceeded \$10,000.

[18] In *Peixeiro v. Haberman*,⁷ the court held that the two year limitation period under the *Highway Traffic Act*⁸ for damages occasioned by a motor vehicle did not start to run until the material fact of sufficient injury to meet the statutory requirement of "permanent serious impairment" is reasonably discoverable. This is because the cause of action under the *Highway Traffic Act* does not accrue until the statutory requirement of the *Insurance Act*⁹ is met:

⁶ 2000 CarswellOnt 5052 (Sup. Ct.).

⁷ 1997 CarswellOnt 2928 (S.C.C.) at para 30.

⁸ R.S.O. 1990, c. H.8

⁹ R.S.O. 1990, c. I.8

30 What insight can we gain into the meaning of s. 206(1) *HTA*, given the exclusion of liability under s. 266 of the *Insurance Act*? An action governed by s. 206(1) fails if it does not qualify under the exception provided for in s. 266(1). The cause of action referred to in s. 206(3) does not accrue until the statutory requirement of s. 266(1) of the *Insurance Act* is met. Under the no-fault system in place at the time of the accident, the mere happening of an injury in a car accident does not found a cause of action. No cause of action exists until sufficient severity of injury exists. This view is strengthened by s. 266(3), which allows for a pre-trial motion on the issue of the existence of a cause of action. Under s. 266(3), a motion may be brought to determine whether there is a cause of action evident on the face of the record. The onus is on the plaintiff to prove that his injuries meet the requirements in s. 266(1) (b): *Buffa v. Gauvin* (1994), 18 O.R. (3d) 725 (Ont. Gen. Div.), and *Meyer v. Bright, supra*, at p. 146.

[19] In my view, this line of authority does not assist these Plaintiffs. There is no condition precedent or statutory threshold applicable. Section 5(1)(a)(iv) does not amount to a bar to an action for recovery in tort, nor is it equivalent to the *Insurance Act* provision such that the cause of action does not arise until a statutory requirement is met. This cause of action was complete, even if the complete extent of damages was not fully known.

[20] The Plaintiffs say that Ms. Muirhead was doing well and recovering from the July 2005 injury when the February 2006 accident intervened. They say that because her condition then worsened that the nature of her loss and what she actually lost was not known until she received the expert opinions. The Plaintiffs rely on *Voisin v. Hartin*¹⁰ in this regard. Not only was that a motor vehicle/threshold case but it is further distinguishable because the plaintiff's injuries in that case at first appeared mild and were fully resolved for a substantial period of time before deteriorating. Taking a good hard look at the evidence before me on this issue, I conclude that it does not support the plaintiff's optimistic view of her recovery before February 2006. I refer in particular to Dr. Gordon's reference to another fall in January 2006 when Ms. Muirhead's right knee buckled under her and she sustained a fracture in her right foot, and to Dr. Besemann's reference that although Ms. Muirhead felt she was ready to consider a return to work her family doctor's notes in late 2005 indicated that this was not likely possible.

[21] *Voisin* may also shed light on the meaning of section 5(1) (a) (iv). Mr. Voisin was required by statute to establish a serious impairment and that his damages would exceed \$10,000. Although the Plaintiffs have faced no such preconditions, the court in *Voisin*¹¹ also stated:

31 It is no answer to say that the plaintiff could have protected his position by starting an action notwithstanding the fact that there was no reasonable basis upon which to conclude that his injuries met the threshold amount of \$10,000. What rational person would commence a lawsuit when there was no reasonable

¹⁰ *Supra*, note 6.

¹¹ *Ibid.*

prospect of recovery? It is unreasonable to suggest that Mr. Voisin should have proceeded to commence an action that was worthless.

32 The rationale underlying the discoverability principle is that the law ought not to preclude an action before a person is able to sue on it. In my view, this rationale requires me to take into account the effect of the \$10,000 requirement. It would be fundamentally unfair to require the plaintiff to bring an action in which he could not expect to recover anything because his claim could not surpass the \$10,000 exemption.

[22] By analogy one may say that a proceeding would not be an appropriate means to seek to remedy an injury if there is no reasonable prospect of success, if the action is likely to be worthless, or the expected award is not likely to cover the costs of obtaining it. The Plaintiffs submitted that they were justified in not suing until actually learning that the injuries that Ms. Muirhead received in 2005 were contributing in a significant and permanent way to her current condition. Only then, they submit, would a legal proceeding have been appropriate having regard to the level of compensation to be achieved. I agree that a plaintiff should not be required to commence an action where there is no reasonable prospect of recovery. No such facts are in evidence here. Ms. Muirhead did not assert that she had decided not to litigate against the Defendants based on any estimated quantum of recoverable damages. The Plaintiffs did not lead evidence to show their knowledge or belief with respect to prospect of success or anticipated recovery based on the July 2005 injury and loss as it stood prior to the subsequent accident in February 2006.

[23] Ms. Muirhead testified at her examination for discovery that she knew she could have sued the Defendants within the limitation period, that she chose not to because they were friends of hers and because she did not think her injury was permanent. She did not provide evidence that she had been advised that the July 2005 injuries were or would resolve favourably. She did not provide evidence that she had been advised that the quantum of damages she might recover for the July 2005 injury was nominal or would render a legal proceeding inappropriate.

[24] The plaintiff's counsel submitted that the nature of the loss changed qualitatively after the February 2006 incident such that the true nature of the loss was not knowable until after the attempted surgical repair in January 2007 and a reasonable period of rehabilitation such as may be considered to be represented by the receipt of Dr. Dervin's January 31, 2008 report.

[25] I disagree. The Plaintiffs clearly had a claim against these Defendants arising from the trip and fall. Ms. Muirhead had sustained significant quantifiable damages for which a proceeding would have been an appropriate remedy. The fact learned subsequently that the injury was permanent and contributed to her current sever condition may have been a basis to increase the quantum of damages sought but is not a new or different claim.

[26] The Plaintiffs rely on *Sheeraz v. Kayani* in support of their submission that they did not know what they had lost until receipt of the experts reports in 2009. In that case Price J. held that the words "nature of the loss" in s. 5 (1) (a) (iv) refer to the cause of the loss as well as to

what was lost. The issue turned on whether a lawyer acting for the plaintiff had caused the loss of a deal to purchase a business. The lawyer's allegedly negligent error occurred two weeks before he ceased to handle the file. During those two weeks the lawyer continued to act, to try to salvage the deal and to threaten litigation against the vendor if the deal fell through. Price J. held that on these facts one could not ascribe to the client knowledge that his loss had been caused by his lawyer two weeks earlier and that suing him was the appropriate remedy.

[27] It is hard to extrapolate from this the conclusion that the Plaintiffs tried to draw namely that the limitation period did not commence to run until they knew that the July 2005 injury would have permanent consequences. The ruling in Sheeraz was that the "nature of the loss" included the "cause of the loss". It did not address the fact situation of learning later that an injury is more severe than originally thought.

[28] The Plaintiffs also rely on cases that extend the running of the limitation period because a medical opinion is required in order to know whether a cause of action existed. *Soper v. Southcott*,¹² considered this in the context of a medical malpractice case. The Ontario Court of Appeal noted that in some cases a medical opinion will be necessary as to the applicable standard of care and whether the care provided fell below it. For example in *Urquhart v. Allen Estate*,¹³ a medical opinion was required in order to know whether there may have been negligence by a radiologist in respect of a 1991 mammogram. The plaintiff had no reason to seek such an opinion until after she learned much later that, in fact, the 1991 mammogram had been diagnostic of cancer, not non-diagnostic as had been stated by the radiologist. Finally, in *Morton v. Cowan*,¹⁴ the court stated:

41 For a medical opinion to extend the running of the limitation period it would have to contain a novel point or points which would have eluded the understanding of a lay person.

[29] The Plaintiffs here submit that the continuing impact of the July 2005 injuries after the February 2006 slip and fall is something that would elude the understanding of a lay person. But, in all three of these cases, the court referred to the requirement that the plaintiff acted with due diligence in acquiring facts in order to be fully apprised of all material facts upon which a negligence claim can be based, and that this included acting diligently in requesting and receiving a medical opinion, if required.

[30] Ms. Muirhead says she retained counsel in March 2006 with respect to the February 2006 slip and fall, but she does not provide any evidence as to why the medical reports obtained in 2009 were not sought sooner, except with respect to Dr. Gordon's report dated November 2009 as being completed "at the request of the defendants for the February 2006 incident."

¹² 1998 CarswellOnt 2906 (C.A.)

¹³ 1999 CarswellOnt 2445 (C.A.)

¹⁴ 2001 CarswellOnt 4226 (Sup. Ct.)

[31] Ms. Muirhead does attach to her affidavit her surgeon's operative report. Dr. Dervin performed the second surgery on her right knee in January 2007. The opening paragraph of his operative report states as follows:

This 43-year-old lady has had difficulty with her right leg stemming from a previous fall and quadriceps rupture some time ago. She did have previous surgery then and unfortunately had difficulties postoperatively in the recovery process and this has led to a very stiff knee with range of motion from about 30° of extension to 70° of flexion with very weak quadriceps. We felt that there was no other nonoperative or conservative way of achieving the goals other than operative release and perhaps an inspection of the quadriceps mechanism.

[32] This paragraph supports an inference that the prior injury to the quadriceps may have contributed to the necessity of the second surgery.

[33] The record before me does not disclose when the Plaintiffs or their counsel received this operative report. Nonetheless, it was transcribed on March 8, 2007 and would have been readily available to them thereafter.

[34] Nor is there any evidence as to when Plaintiffs' counsel requested Dr. Dervin's report dated January 31, 2008 or why it was not obtained sooner. There are points in this report that draw a connection or potential connection between the two injuries, in particular reference to the very weak quadriceps arising from the July 2005 injury.

[35] Other than the repeat neurology consult in October 2007 which provided no new information, Dr. Dervin's second report of January 31, 2008 does not reveal any significant developments after July 7, 2007 with respect to the connection between the July 2005 injury and its potential ongoing impact to the current severity of Ms Muirhead's condition. Taken together Dr. Dervin's reports show the potential connection between the first accident and the on-going injuries. The inference drawn from his operative report supports the conclusion that a more complete report ought to have been requested from him in a timely way, yet no explanation is provided as to why that was not done.

[36] In *Soper v. Southcott*, *supra*, the Ontario Court of Appeal stated at paragraph 21:

In many cases, I suspect that the necessary facts will not be acquired by the plaintiff alleging medical malpractice until his solicitor has had a reasonable opportunity to review all pertinent hospital and medical records. Section 17 prescribes that the time will run when the plaintiff knows or ought to have known of facts upon which he asserts allegations of negligence. That time will frequently run from the moment the solicitor for the plaintiff *carrying out diligent investigation* is first apprised of all the facts. [Emphasis added.]

And, to the same effect, White J. in *Gaudet*, *supra*, at p. 582:

It is a question of fact as to when the information developed by his solicitor or by himself has reached the stage that a reasonably prudent person, *with appropriate access to medical knowledge* (appropriate in the sense of that which could be discovered by a reasonably prudent solicitor, or plaintiff following a reasonably diligent investigation) would have determined that he had *prima facie* grounds for inferring that his doctor had been negligent or had engaged in malpractice upon him. [Emphasis in Original.]

Limitation periods are not enacted to be ignored. The plaintiff is required to act with due diligence in acquiring facts in order to be fully apprised of the material facts upon which a negligence or malpractice claim can be based. This includes acting with diligence in requesting and receiving a medical opinion, if required, so as not to delay the commencement of the limitation period. In some cases, a medical opinion will be necessary to know whether to institute an action. In other cases, it will be possible to know material facts without a medical opinion, and the medical opinion itself will simply be required as evidence in the litigation. In the latter instances, the time of receipt of the medical opinion is immaterial to the commencement of the running of the limitation period.

[37] The evidence is compelling that after the second intervening accident in February 2006 Dr. Dervin's operative report was available to Ms. Muirhead in March 2007 and that it inferred a connection between the pre existing weakness in the right quadriceps to the necessity of the surgery which he performed. There is no evidence from the Plaintiffs as to why they did not obtain the follow up report from Dr. Dervin until January 2008, nor any explanation given for not seeking Dr. Besemann's expert opinion until June 2009. Even if the Plaintiffs did need expert medical opinion in order to understand the material facts of their case, in the absence of evidence on these points, I conclude that there is no genuine issue of material fact requiring trial as to the applicability of section 5 (b) to extend the running of the limitation period. I am entitled to assume that there is no other evidence on these points that the Plaintiffs could put forward on the issue.

[38] The evidence before the court is compelling that Ms. Muirhead knew she had a claim against the Defendants within the limitation period, she knew her injury was significant and she decided not to sue the Defendants because of friendship and her own hope for recovery. For reasons already given, I am also satisfied that there is no genuine issue of material fact requiring a trial under s. 5(1)(a)(iv) that a legal proceeding brought within the 2 year limitation period would not have been an appropriate means to seek to remedy the July 2005 injury. The Defendants have met the burden upon them to show that there is no genuine issue requiring trial. Their motion for summary judgment is granted.

[39] The Defendants are entitled to their costs of the motion and of the action. The costs of the motion are fixed on a partial indemnity basis at \$5,000.00 all inclusive, based on a reduction to the estimated counsel fee for arguing the motion to match the actual time expended in court.

[40] The Defendants costs of the action are also allowed on a partial indemnity basis, as asked, at \$6,108.14, all inclusive.

J. Mackinnon J.

RELEASED: November 7, 2011

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